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|     |                                                                    | <p>In light of Judgment Creditor's judgment in the amount of \$80,427.85 and inability to date to collect on that judgment, the unopposed Motion for Assignment Order is GRANTED. The Court ORDERS that Judgement Creditor is assigned all of Judgment Debtor's rights to payment due or to become due from third party medical insurance companies from Judgment Debtor's medical practice until the Judgment Creditor's judgment, including all accrued interest, is satisfied in full.</p> <p>Judgment Creditor also seeks an order restraining Judgment Debtor from assigning or otherwise disposing of the assigned rights to payment.</p> <p>"When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned." (Code Civ. Proc., § 708.520(a).) "The court may issue an order pursuant to this section upon a showing of need for the order." (Id. § 708.520(b).)</p> <p>Here, Judgment Creditor's attempts to satisfy the judgment have been unsuccessful and Judgment Creditor has no other avenues in which to seek recovery. (Tiber Decl. ¶¶ 3-4, 9.) The Court finds that Judgment Creditor has shown a need for an order restraining Judgment Debtor from assigning the rights to payment. Thus, Judgment Debtor is ORDERED restrained from assigning or otherwise disposing of the rights to payment that Judgment Creditor sought to be assigned.</p> <p>Judgment Debtor is advised that failure to comply with this order may subject Judgment Debtor to being held in contempt of court. (Code Civ. Proc., § 708.520(d).)</p> <p><i>Moving party to give notice.</i></p> |
| 106 | Ho vs. State Farm Mutual Automobile Insurance Company, 26-01538684 | <p>Claimants Amy Ho and Albert Avalos seek an order that all parties, their representatives, and any of their witnesses may not at any time disclose the policy limits or the amount of any offsets regarding those insurance policy limits to the Arbitrator in the upcoming underinsured motorist arbitration.</p> <p>"The statutory requirement for arbitration of uninsured motorist claims is contained in subdivision (f) of Insurance Code section 11580.2 which provides in pertinent part: 'The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration....' The word 'damages' in this provision means the damages which the insured is entitled to recover from the uninsured motorist, and the statute thus requires arbitration of two issues only: (1) whether the insured is entitled to</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

recover against the uninsured motorist and (2) if so, the amount of damages." (*Weinberg v. Safeco Ins. Co. of America* (2004) 114 Cal.App.4th 1075, 1082 (citing *Furlough v. Transamerica Ins. Co.* (1988) 203 Cal.App.3d 40, 45–46).)

Claimants contend that, because the statute provides that the arbitrator shall decide the total amount of damages that claimants are entitled to recover from the insured motorist, rather than the amount owed to claimants under the applicable policy or policies, that the policy limits are irrelevant. Claimants contend that disclosing the policy limits to the arbitrator could potentially subtly bias the arbitrator in determining the amount of damages.

Claimants' contention of potential arbitrator bias is unpersuasive. Further, Claimants have not submitted any authority which has even suggested that the policy limits should be withheld from the arbitrator.

To the contrary, case law seems to presume that the arbitrator will be aware of the policy limits. For example, in *Cothron v. Interinsurance Exch. of Auto. Club of Southern Calif.*, the court found that "the arbitrator's determination that the damages suffered by appellant 'far exceeded the limits of the \$15,000' was sufficient to determine all of the questions submitted to the arbitrator that were necessary in order to determine the controversy." (*Cothron v. Interinsurance Exch. of Auto. Club of Southern Calif.* (1980) 103 Cal.App.3d 853, 860.)

In *Weinberg v. Safeco Ins. Co. of America*, the court cautioned insurers in future cases that "if the arbitrator makes an award of damages in excess of the policy limits, then the insurer must move in a timely manner, either before the arbitrator or in court, to vacate the award or correct it or risk having the court confirm the entire award upon a motion to confirm by the insured." (*Weinberg v. Safeco Ins. Co. of America* (2004) 114 Cal.App.4th 1075, 1085.) While the *Weinberg* court suggested that the parties could avoid the risk of an improper award by "see[ing] that the arbitrator does not make an award of damages, but instead issues a declaration of liability or of rights," the court did not suggest that the arbitrator should not be made aware of the policy limits. (*Id.* at 1084.)

Overall, Claimants have made no compelling argument in support of nondisclosure of the policy limits. On the other hand, disclosure is relevant to prevent a potentially improper arbitration award.

Accordingly, the motion is DENIED.

*Defendant to give notice.*

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| 107 | Scates vs. Regal Entertainment, Inc.,<br>24-01381325 | <p>Defendants REGAL ENTERTAINMENT, INC. dba REGAL FOOTHILL TOWNE CENTER (erroneously sued as REGAL ENTERTAINMENT, INC.) and REGAL FOOTHILL TOWNE CENTER ("Defendants") move to compel Plaintiff John Scates to submit to a medical examination as follows:</p> <p>MEDICAL EXAMINER: Paul Kaloostian, M.D. (Dr. Kaloostian), a Board Certified Neurological Surgeon.</p> <p>DATE/TIME: On any date and time the Court orders.</p> <p>PLACE: 960 E Green St, Suite 320 Pasadena, CA 90116.</p> <p>SCOPE: A physical examination. The purpose and scope of the examination is to obtain an independent evaluation and assessment of Plaintiff's current and future condition and/or future prognosis from Dr. Kaloostian's standpoint based upon his background, experience and training, and may include, but is not limited to, the taking of an appropriate oral history, a physical examination of the area(s) at-issue, and such diagnostic procedures as Dr. Kaloostian deems necessary to complete a diagnosis, assessment of past and future treatment, prognosis, the need for and costs of future treatment(s), if any. No tests will be performed that are painful, protracted or intrusive.</p> <p>Dr. Kaloostian may ask, and Plaintiff shall answer, questions relating to the nature and extent of the injuries alleged to have been sustained in the incident that is the subject matter of this action; present symptoms and conditions; medical history, including the manner in which the injuries were incurred; prior and subsequent injuries and diseases; and Plaintiff's occupational history. There shall be no inquiry, other than is necessary for purposes of diagnosis and evaluation of the injuries, symptoms and conditions, into the conduct, events, or circumstances alleged to have produced or contributed to the happening of the incident.</p> <p>Dr. Kaloostian may use, and Plaintiff shall cooperate in the use of accepted diagnostic instruments, tests, manipulations and techniques, but no procedure causing undue pain or discomfort to Plaintiff's life or health shall be used except by order of this Court, granted with notice, on a further showing of good cause therefore.</p> <p>Any and all reports and/or test results interpreted by Dr. Kaloostian in connection with this examination will be produced pursuant to the provisions of California Code of Civil Procedure sections 2032.640 and 2034.210 at or before the time of her deposition, if any.</p> <p>Lastly, should Plaintiff require the use of an interpreter, Defendants require that Plaintiff notify Defendants at least</p> |
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